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JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
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Midland Credit Management, Inc.
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
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CA Debt Collector License Number Pending
Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By E. Flores, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

ANTONIA RODAS;
and DOES 1 through 10, inclusive
Defendant.

Case No.

24CHLC00911
COMPLAINT FOR:

(1) Account Stated

PRAYER AMT: \$2,328.19
LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues ANTONIA RODAS, ("Defendant")
under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of LOS ANGELES County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.
Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:
4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

- 1 5. Defendant established a credit account (the "Account") with CREDIT ONE BANK,
2 N.A.. The amount due is the result of transactions that occurred on the Account.
3 Defendant was provided statements evidencing Defendant's use of the Account and the
4 balance due. Defendant failed to make the required payments and subsequently
5 defaulted on the Account on April 26, 2019. Thereafter, Plaintiff was assigned all rights,
6 title, and interest in the Account.
- 7 6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of
8 the Bill of Sale from Credit One Bank, N.A., to Plaintiff. The Account was purchased by
9 Plaintiff on January 21, 2020.
- 10 7. The Account balance at the time of charge-off was \$2,917.12. Plaintiff alleges that the
11 date of default is April 26, 2019 and the date of the last payment was February 27, 2022.
- 12 8. The name of the charge-off creditor at the time of charge-off is CREDIT ONE BANK,
13 N.A.. The address utilized by CREDIT ONE BANK, N.A. at the time of charge-off was
14 P.O. BOX 98873 LAS VEGAS,NV 89193. At the time of charge off, the account
15 number associated with the debt was XXXXXXXX-XX-6140.
- 16 9. The name of the debtor as it appeared in the records of CREDIT ONE BANK, N.A. is
17 ANTONIA RODAS and the last known address as it appeared in the records of CREDIT
18 ONE BANK, N.A. is 250 E AVENUE P1 PALMDALE CA 93550.
- 19 10. The name and address of all post charge-off purchasers of the debt are as follows:
- | Name | Address |
|------------------------------------|--|
| MHC RECEIVABLES, LLC | 6807 S. CIMARRON RD LAS VEGAS NV
89113 |
| SHERMAN ORIGINATOR III LLC | 200 MEETING STREET SUITE 206
CHARLESTON SC 29401 |
| MIDLAND CREDIT MANAGEMENT,
INC. | 350 CAMINO DE LA REINA SUITE 100 SAN
DIEGO CA 92108 |
- 22 11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed
23 Defendant of the assignment of the Account.
- 24 12 Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a
25 monthly statement recording a purchase transaction, payment, or balance transfer while
26 the Account was active as required by CA CIVIL §1788.52(b).
- 27 13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to
28 Defendant stating the balance due on the Account at or around the time of charge-off.

- 1 14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff
2 acts in its capacity as successor-in-interest to the original creditor or its assigns,
3 references herein to Plaintiff may include Plaintiff's predecessor-in-interest.
- 4 15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve
5 the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff
6 works with consumers like Defendant to find mutually acceptable solutions, often
7 offering discounts, hardship plans, and a variety of payment options. The majority of
8 Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their
9 obligations. When this happens, Plaintiff must decide whether to pursue collection
10 through legal channels, including litigation such as the present action against Defendant.
11 Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution
12 through voluntary payments, if possible, in this case.
- 13 16. Before commencement of this action, Plaintiff informed Defendant in writing, that it
14 intended to file this action and that this action could result in a judgment against
15 Defendant that would include court costs allowed by California Code of Civil Procedure
16 § 1033(b)(2).

17 **FIRST CAUSE OF ACTION**

18 **ACCOUNT STATED**

- 19 17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.
- 20 18. An account was stated in writing between Defendant and CREDIT ONE BANK, N.A..
21 Defendant opened and derived benefit from the Account. By using the Account,
22 Defendant expressly or impliedly promised to repay CREDIT ONE BANK, N.A..
23 Within the last four years, Defendant became indebted on the Account.
- 24 19. On the Account, a balance of \$2,917.12 was stated to be due to CREDIT ONE BANK,
25 N.A. from Defendant. Plaintiff has no record of Defendant objecting to the balance due.
- 26 20. Before the commencement of this action, Plaintiff was assigned the Account and
27 indebtedness. Plaintiff is now the sole owner of the Account.
- 28 21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant
has failed to pay the balance due.
22. The current balance presently due and owing is \$2,328.19 which includes payments, set-
offs, credits or allowances, if any, at or after charge-off.

1
2 **WHEREFORE**, Plaintiff requests judgment against Defendant for \$2,328.19, costs of this action
3 and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and
4 attorney's fees.
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6
7 Dated: December 27, 2023

MIDLAND CREDIT MANAGEMENT, INC.

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10 

11 By: Junqiao Xiao, Esq.

12 ☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
13 ☐ MICHAEL D. KAHN / ☐ HYU JIN JULIA JUNG
14 ☐ LAMONT FREEMAN
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BILL OF SALE AND ASSIGNMENT OF ACCOUNTS AND RECEIVABLES
FROM SHERMAN ORIGINATOR III LLC TO MIDLAND CREDIT MANAGEMENT, INC.

Sherman Originator III LLC ("Seller"), the owner of certain accounts and associated receivables (hereinafter referred to collectively as "Purchased Accounts"), for value received and in accordance with the terms of the Purchase and Sale Agreement, by and between Seller and Midland Credit Management, Inc. ("Buyer"), dated as of **January 21, 2019** ("Agreement"), does hereby sell, assign and transfer to Buyer, its successors and assigns, all right, title and interest in and to the Purchased Accounts as described on the computer file named **20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append data** (the "Computer File"), a copy of which is attached hereto and incorporated herein by reference as "Exhibit A".

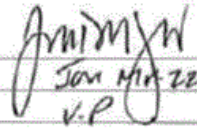
This Bill of Sale and Assignment of Accounts and Receivables is subject to the terms of the Agreement and is made without representations and warranties of any kind or character except as expressly stated in the Agreement, or as expressly stated below.

With respect to information for the Purchased Accounts described in the related Computer File, to the best of Seller's knowledge, Seller represents and warrants to Buyer that such information (i) is materially complete and accurate; (ii) constitutes Seller's own business records that pertain to the Purchased Accounts and accurately reflects in all material respects the information in Seller's database; (iii) was kept in the regular course of Seller's business; (iv) was made, entered or compiled in the regular course of business; (v) was recorded at or near the time the underlying activity occurred, by a person with knowledge of the data recorded; (vi) has been accurately maintained in Seller's database since it was recorded there; and (vii) it is the regular practice of Seller's business to maintain and compile such data.

This Bill of Sale and Assignment of Accounts and Receivables may be entered as evidence of ownership for any of the Purchased Accounts conveyed hereby.

Closing date: January 21, 2020

SHERMAN ORIGINATOR III LLC

By: 
Name: Jon Mazzoli
Title: V.P.

MIDLAND CREDIT MANAGEMENT, INC.

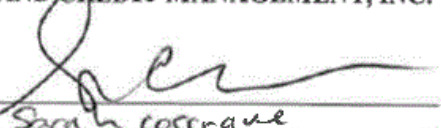
By: 
Name: Sarah Cosgrane
Title: MVP, Business Development

EXHIBIT A

ACCOUNT SCHEDULE

The Purchased Accounts pursuant to the BILL OF SALE AND ASSIGNMENT OF ACCOUNTS AND RECEIVABLES FROM SHERMAN ORIGINATOR III LLC TO MIDLAND CREDIT MANAGEMENT, INC. that are specifically identified in the electronic file named **20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append** data with such electronic file incorporated herein by reference.

BILL OF SALE AND ASSIGNMENT OF ACCOUNTS
FROM CREDIT ONE BANK, N.A. TO MHC RECEIVABLES, LLC

As of **December 31, 2019**, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Credit One Bank, N.A. ("Assignor") has transferred, has sold, has assigned, has conveyed, has granted and has otherwise delivered to MHC Receivables, LLC ("Assignee"), all of Assignor's right, title and interest in and to (i) the charged-off credit card accounts identified on an account level basis in the data file named **CreditOne_Encore_012020** (the "Computer File"), a copy of which is attached hereto and incorporated herein by reference as "Exhibit A"; and, (ii) certain related account level media or electronic copies thereof (including, but not limited to applications, statements, terms and condition), and (iii) all claims or rights arising out of or relating to each account referenced on the Computer File (collectively hereinafter, the "Accounts") including, but not limited to, all claims and rights afforded each Account by virtue of that Account's corresponding terms and conditions.

The Accounts transferred under the terms of this Bill of Sale and Assignment of Accounts were each transferred to Assignee immediately following charge off for each applicable Account, as shown in the Computer File.

With respect to information for the Accounts, Assignor represents and warrants to Assignee that the business records conveyed to Assignee relating to: (i) the Accounts issued by Assignor; and (ii) the sale and assignment of Accounts by Assignor (collectively, the "Business Records"), are kept by Assignor in the regular course of its business. It is in the regular course of business of Assignor for an employee or an authorized representative with personal knowledge of the act, event, condition, or opinion (collectively "Event") to be recorded, to make the appropriate memorandum or recording of the Event at or reasonably near the time of the Event. Furthermore, Assignor represents and warrants to Assignee that the Business Records are materially complete and accurate, and thoroughly embody the information in Assignor's custody and control for the Accounts from their creation until the time of transfer to Assignee. These representations and warranties are intended to augment any other representations and warranties the parties may have in place and not supplant any other existing warranties and representations.

This Bill of Sale and Assignment of Accounts shall serve as evidence of ownership for the Accounts conveyed hereby and shall serve as an acknowledgment, as ratification, and as evidence of the intent of the parties to transfer the Accounts.

CREDIT ONE BANK, N.A.

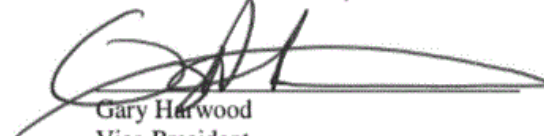

Gary Harwood
Vice President

EXHIBIT A

ACCOUNT SCHEDULE

The Accounts pursuant to the BILL OF SALE AND ASSIGNMENT OF ACCOUNTS FROM CREDIT ONE BANK, N.A. TO MHC RECEIVABLES, LLC that are specifically identified in the electronic file named **CreditOne_Encore_012020** with such electronic file incorporated herein by reference.

BILL OF SALE AND ASSIGNMENT OF RECEIVABLES
FROM CREDIT ONE BANK, N.A. TO MHC RECEIVABLES, LLC

As of **December 31, 2019**, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Credit One Bank, N.A. ("Assignor") has transferred, has sold, has assigned, has conveyed, has granted and has otherwise delivered to MHC Receivables, LLC ("Assignee"), all of Assignor's right, title and interest in and to (i) the receivables associated with each and every account referenced in the data file named **CreditOne_Encore_012020** (the "Computer File"), a copy of which is attached hereto and incorporated herein by reference as "Exhibit A"; and, (ii) all claims or rights arising out of or relating to each of those Receivables (hereinafter, the "Receivables").

The Receivables transferred under the terms of this Bill of Sale and Assignment of Receivables were each transferred to Assignee prior to the charge off of the associated accounts, as shown in the Computer File. This Bill of Sale and Assignment of Receivables evidences the intent between the parties for the transfer of the Receivables, acts as an acknowledgement of those transfers, and, to the extent necessary, ratification of the transfers.

With respect to information for the Receivables, Assignor represents and warrants to Assignee that the business records conveyed to Assignee relating to the Receivables (the "Business Records"), are kept by Assignor in the regular course of its business. It is in the regular course of business of Assignor for an employee or an authorized representative with personal knowledge of the act, event, condition, or opinion (collectively "Event") to be recorded, to make the appropriate memorandum or recording of the Event at or reasonably near the time of the Event. Furthermore, Assignor represents and warrants to Assignee that the Business Records are materially complete and accurate, and thoroughly embody the information in Assignor's custody and control for the Receivables from their creation until the time of transfer to Assignee. These representations and warranties are intended to augment any other representations and warranties the parties may have in place and not supplant any other existing warranties and representations.

This Bill of Sale and Assignment of Receivables shall serve as evidence of ownership for the Receivables conveyed hereby and shall serve as an acknowledgment, as ratification, and as evidence of the intent of the parties to transfer the Receivables.

CREDIT ONE BANK, N.A.

A handwritten signature in black ink, appearing to read 'G. Harwood', is written over a horizontal line.

Gary Harwood
Vice President

EXHIBIT A

ACCOUNT SCHEDULE

The Receivables pursuant to the BILL OF SALE AND ASSIGNMENT OF RECEIVABLES FROM CREDIT ONE BANK, N.A. TO MHC RECEIVABLES, LLC that are specifically identified in the electronic file named **CreditOne_Encore_012020** with such electronic file incorporated herein by reference.

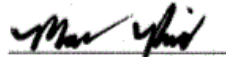
BILL OF SALE AND ASSIGNMENT OF RECEIVABLES
FROM MHC RECEIVABLES, LLC TO FNBM, LLC

As of **January 15, 2020**, MHC Receivables, LLC ("Assignor"), for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, has periodically transferred, has sold, has assigned, has conveyed, has granted and has otherwise delivered to FNBM, LLC ("Assignee") all of its rights, title and interest in and to (i) the receivables identified and specifically referenced for each of the accounts on an account level basis on the data file titled **CreditOne_Encore_012020** attached hereto and incorporated by reference as "Exhibit A" ; and (ii) all claims or rights arising out of or relating to the account level receivables (hereinafter the "Receivables").

With respect to information for the Receivables, Assignor represents and warrants to Assignee that the business records conveyed to Assignee relating to the Receivables (the "Business Records"), are kept by Assignor in the regular course of its business. It is in the regular course of business of Assignor for an employee or an authorized representative with personal knowledge of the act, event, condition, or opinion (collectively "Event") to be recorded, to make the appropriate memorandum or recording of the Event at or reasonably near the time of the Event. Furthermore, Assignor represents and warrants to Assignee that the Business Records are materially complete and accurate, and thoroughly embody the information in Assignor's custody and control for the Receivables from their creation until the time of transfer to Assignee. These representations and warranties are intended to augment any other representations and warranties the parties may have in place and not supplant any other existing warranties and representations.

This Bill of Sale and Assignment of Receivables shall serve as an acknowledgment, as ratification, and as evidence of the intent of the parties to transfer the Released Receivables referenced herein.

MHC Receivables, LLC

A handwritten signature in black ink, appearing to read "Mark Rufail", is written over a horizontal line.

Mark Rufail, Authorized Representative

EXHIBIT A

ACCOUNT SCHEDULE

The Receivables pursuant to the BILL OF SALE AND ASSIGNMENT OF RECEIVABLES FROM MHC RECEIVABLES, LLC TO FNBM, LLC that are specifically identified in the electronic file named **CreditOne_Encore_012020**, with such electronic file incorporated herein by reference.

BILL OF SALE AND ASSIGNMENT OF RECEIVABLES
FROM FNBM, LLC TO SHERMAN ORIGINATOR III LLC

On **January 15, 2020**, FNBM, LLC ("Assignor"), for good and valuable consideration, the receipt of which is hereby acknowledged, hereby transfers, sells, assigns, conveys, grants and delivers to Sherman Originator III LLC ("Assignee"), all of its rights, title and interest in and to (i) the receivables identified and specifically referenced for each of the accounts on an account level basis on the data file titled **CreditOne_Encore_012020** attached hereto and incorporated by reference as "Exhibit A"; and (ii) all claims or rights arising out of or relating to the receivables (hereinafter the "Receivables").

With respect to information for the Receivables, Assignor represents and warrants to Assignee that the business records relating to the Receivables (the "Business Records") are kept by Assignor in the regular course of its business. It is in the regular course of business of Assignor for an employee or an authorized representative with personal knowledge of the act, event, condition, or opinion (collectively "Event") to be recorded, to make the appropriate memorandum or recording at or reasonably near the time of the Event. Furthermore, Assignor represents and warrants to Assignee that the Business Records are materially complete and accurate and thoroughly embody the information in Assignor's custody and control for the Receivables from Assignor's receipt of those Receivables until the time of transfer to Assignee. These representations and warranties are intended to augment any other representations and warranties the parties may have in place and not supplant any other existing warranties and representations.

This Bill of Sale and Assignment of Receivables shall serve as evidence of ownership for any of the Receivables conveyed hereby.

FNBM, LLC



Jon Mazzoli, Authorized Representative

EXHIBIT A

ACCOUNT SCHEDULE

The Receivables pursuant to the BILL OF SALE AND ASSIGNMENT OF RECEIVABLES FROM FNBM, LLC TO SHERMAN ORIGINATOR III, LLC that are specifically identified in the electronic file named **CreditOne_Encore_012020**, with such electronic file incorporated herein by reference.

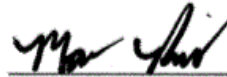
BILL OF SALE AND ASSIGNMENT OF ACCOUNTS
FROM MHC RECEIVABLES, LLC TO SHERMAN ORIGINATOR III LLC

On **January 15, 2020**, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, MHC Receivables, LLC ("Assignor"), hereby transfers, sells, assigns, conveys, grants and otherwise delivers to Sherman Originator III LLC ("Assignee"), all of Assignor's, rights title and interest in and to (i) the charged-off accounts identified on an account level basis in the data file named **CreditOne_Encore_012020** (the "Computer File"), a copy of which is attached hereto and incorporated herein by reference as "Exhibit A"; and, (ii) certain related account level media or electronic copies thereof (including, but not limited to applications, statements, terms and condition), and (iii) all claims or rights arising out of or relating to each referenced account (collectively hereinafter the "Accounts") including, but not limited to, all claims and rights afforded each account by virtue of that account's corresponding terms and conditions.

With respect to information for the Accounts described in the related Computer File, Assignor represents and warrants to Assignee that the business records relating to: (i) the Accounts owned by Assignor; and (ii) the sale and assignment of Accounts by Assignor (collectively, the "Business Records"), are kept by Assignor in the regular course of its business. It is in the regular course of business of Assignor for an employee or an authorized representative with personal knowledge of the act, event, condition, or opinion (collectively "Event") to be recorded, to make the appropriate memorandum or recording at or reasonably near the time of the Event. Furthermore, Assignor represents and warrants to Assignee that the Business Records are materially complete and accurate and thoroughly embody the information in Assignor's custody and control for the Accounts listed in the Computer File from Assignor's receipt of those Accounts until the time of transfer to Assignee. These representations and warranties are intended to augment any other representations and warranties the parties may have in place and not supplant any other existing warranties and representations.

This Bill of Sale and Assignment of Accounts shall serve as evidence of ownership for any of the Accounts conveyed hereby.

MHC Receivables, LLC



Mark Rufail, Authorized Representative

EXHIBIT A

ACCOUNT SCHEDULE

The Accounts pursuant to the BILL OF SALE AND ASSIGNMENT OF ACCOUNTS FROM MHC RECEIVABLES, LLC TO SHERMAN ORIGINATOR III, LLC that are specifically identified in the electronic file named **CreditOne_Encore_012020**, with such electronic file incorporated herein by reference.

Exhibit G

AFFIDAVIT OF CREDIT ONE BANK, N.A., FNBM, LLC, AND MHC RECEIVABLES, LLC

STATE OF NEVADA)
) ss.
COUNTY OF CLARK)

Your Affiant, Gary Harwood, being first duly sworn, states under oath as follows:

1. My name is Gary Harwood. I am a Vice President of Credit One Bank, N.A. ("Credit One"), and an authorized representative of Credit One, FNBM, LLC ("FNBM"), and MHC Receivables, LLC ("MHC"). I am over the age of eighteen and authorized to make this Affidavit on behalf of Credit One, FNBM, and MHC. If called as a witness, I can testify to a court competently as to my knowledge of the facts contained herein.

2. As part of my regular job duties, I have access to and routinely review the business records of Credit One, MHC, and FNBM related to accounts and associated receivables originated, serviced, and charged-off by Credit One. Such records include those maintained by or on behalf of Credit One, MHC and FNBM in the ordinary course of each entity's business with regard to the sale and assignment of Credit One's, MHC's, and FNBM's accounts and associated receivables.

3. The facts stated herein are within my personal knowledge and are based on my review of the relevant books and records available to me.

4. Assignment or Sale of Receivables.

a. Each day, pursuant to the terms of self-executing purchase agreements, any new receivables ("Receivables") associated with the Accounts (as defined below), are sold by (a) Credit One to MHC, as evidenced by a Bill of Sale and Assignment dated as of **December 31, 2019**, by Credit One in favor of MHC, a copy of which is attached hereto, and then (b) MHC to FNBM, as evidenced by a Bill of Sale and Assignment dated as of **January 15, 2020**, by MHC in favor of FNBM, a copy of which is attached hereto.

b. On or about **January 15, 2020**, FNBM sold the Receivables to Sherman Originator III, LLC ("Sherman"), as evidenced by a Bill of Sale and Assignment dated as of **January 15, 2020**, by FNBM in favor of Sherman, a copy of which is attached hereto.

5. Assignment or Sale of Accounts.

a. On or about **December 31, 2019**, Credit One sold a pool of charged-off accounts ("Accounts") associated with the Receivables to MHC, as evidenced by a Bill of Sale and Assignment dated as of **December 31, 2019**, by Credit One in favor of MHC, a copy of which is attached hereto.

b. On or about **January 15, 2020**, MHC sold the Accounts to Sherman, as evidenced by a Bill of Sale and Assignment dated as of **January 15, 2020**, by MHC in favor of Sherman, a copy of which is attached hereto.

6. Neither Credit One, FNBM, nor MHC retains any rights to receive payments, or to collect on the Accounts or Receivables. As demonstrated in the preceding, the Accounts and Receivables are ultimately reunited and all rights, title, and interest in the Accounts and Receivables are ultimately held by Sherman. Sections 4 and 5 of this Affidavit shall hereinafter be referred to collectively as the "Sale of Accounts and Receivables".

7. As part of the Sale of Accounts and Receivables, information contained in Credit One's, MHC's, and FNBM's business records relating to the Accounts and Receivables (collectively, the "Business Records") were provided to Sherman. These Business Records were made and/or recorded by or for Credit One, FNBM, and MHC as part of the regular course of business of each entity at or near the time of the acts, events, or conditions recorded.

These Business Records accurately reflect the status of the Accounts and Receivables, are truthfully reflected in the computer file identified in each Bill of Sale and Assignment, and are complete without errors to the best of my knowledge.

8. Credit One, as servicing agent for MHC and FNB, maintained the Business Records related to the Accounts and Receivables. To the extent the Business Records include records that were prepared by Credit One on behalf of MHC or FNB, those records were accurately incorporated into the records of both FNB and MHC as both FNB's and MHC's own Business Records. To the extent that the Business Records include records that were prepared by a third party other than Credit One, those records were accurately incorporated into the records of both FNB and MHC as Business Records, and were relied upon thereon.

The above statements are true and accurate to the best of my knowledge and are made for the benefit of any court that from time to time considers whether Sherman (or its successors or assigns) has the right to collect and/or enforce all or any portion of the Receivables, or to enforce any rights related to the Accounts.

Signed this 18TH day of FEB, 2020



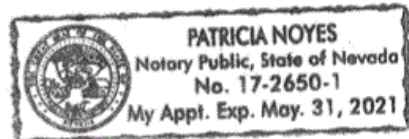
Gary Harwood
Credit One Bank, N.A. – Authorized Representative and Vice President of Collections
FNB, LLC – Authorized Representative
MHC Receivables, LLC – Authorized Representative

ACKNOWLEDGMENT OF SIGNATURE BY LICENSED NOTARY

STATE OF NEVADA)
) ss.
COUNTY OF CLARK)

This instrument was acknowledged before me on the 18 day of Feb, 2020 by Gary Harwood, authorized representative of FNB, LLC, authorized representative of MHC Receivables, LLC, and Vice President of Collections for Credit One Bank, N.A.


_____, Notary Public

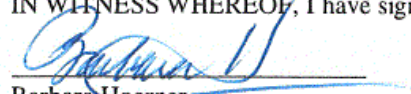


CERTIFICATE OF CONFORMITY

STATE OF NEVADA)
) ss.
COUNTY OF CLARK)

I, Barbara Hoerner, an attorney-at-law admitted to practice in the State of Nevada as In House Counsel for Credit One Bank, N.A., do hereby certify that I am fully acquainted with the laws of the State of Nevada pertaining to administration and taking of oaths, affirmations and acknowledgements. I further state that I am duly qualified to make this Certificate of Conformity and that the acknowledgement upon the **Affidavit of Sale** was taken by Patricia Noyes, notary public in the State of Nevada, in the manner prescribed by the laws of the State of Nevada.

IN WITNESS WHEREOF, I have signed this Certificate the 18th day of February, 2020



Barbara Hoerner
Nevada State Bar # 14658C
Credit One Bank, N.A.
6801 S. Cimarron Rd.
Las Vegas, NV 89113

BILL OF SALE AND ASSIGNMENT OF ACCOUNTS AND RECEIVABLES
FROM SHERMAN ORIGINATOR III LLC TO MIDLAND CREDIT MANAGEMENT, INC.

Sherman Originator III LLC ("Seller"), the owner of certain accounts and associated receivables (hereinafter referred to collectively as "Purchased Accounts"), for value received and in accordance with the terms of the Purchase and Sale Agreement, by and between Seller and Midland Credit Management, Inc. ("Buyer"), dated as of **January 21, 2019** ("Agreement"), does hereby sell, assign and transfer to Buyer, its successors and assigns, all right, title and interest in and to the Purchased Accounts as described on the computer file named **20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append data** (the "Computer File"), a copy of which is attached hereto and incorporated herein by reference as "Exhibit A".

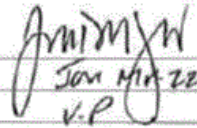
This Bill of Sale and Assignment of Accounts and Receivables is subject to the terms of the Agreement and is made without representations and warranties of any kind or character except as expressly stated in the Agreement, or as expressly stated below.

With respect to information for the Purchased Accounts described in the related Computer File, to the best of Seller's knowledge, Seller represents and warrants to Buyer that such information (i) is materially complete and accurate; (ii) constitutes Seller's own business records that pertain to the Purchased Accounts and accurately reflects in all material respects the information in Seller's database; (iii) was kept in the regular course of Seller's business; (iv) was made, entered or compiled in the regular course of business; (v) was recorded at or near the time the underlying activity occurred, by a person with knowledge of the data recorded; (vi) has been accurately maintained in Seller's database since it was recorded there; and (vii) it is the regular practice of Seller's business to maintain and compile such data.

This Bill of Sale and Assignment of Accounts and Receivables may be entered as evidence of ownership for any of the Purchased Accounts conveyed hereby.

Closing date: **January 21, 2020**

SHERMAN ORIGINATOR III LLC

By: 
Name: Jon Mazzoli
Title: V.P.

MIDLAND CREDIT MANAGEMENT, INC.

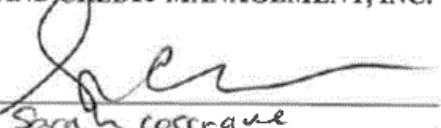
By: 
Name: Sarah Cosgrane
Title: MVP, Business Development

EXHIBIT A

ACCOUNT SCHEDULE

The Purchased Accounts pursuant to the BILL OF SALE AND ASSIGNMENT OF ACCOUNTS AND RECEIVABLES FROM SHERMAN ORIGINATOR III LLC TO MIDLAND CREDIT MANAGEMENT, INC. that are specifically identified in the electronic file named **20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append** data with such electronic file incorporated herein by reference.

Exhibit F

AFFIDAVIT OF SALE OF ACCOUNTS BY
SHERMAN ORIGINATOR III LLC

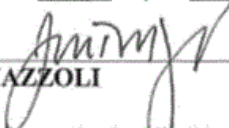
State of South Carolina
County of Charleston

I, Jon Mazzoli, hereby affirm as follows:

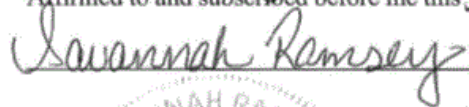
1. I am over 18 and not a party to this action. I am a Vice President of Sherman Originator III LLC ("Sherman Originator III LLC"). In that capacity, I have access to certain books and records of Sherman Originator III LLC and certain of its subsidiaries and affiliates (as defined by common control) (collectively, "Sherman"), and am aware of the process of the sale and assignment of electronically stored business records.
2. Sherman Originator III LLC owns certain accounts and maintains and records information in its business records as those records relate to such accounts. I am authorized to make the statements and representations set forth in this affidavit on behalf of Sherman Originator III LLC. The statements set forth herein are true and correct to the best of my knowledge, information, and belief, based on either personal knowledge or review of the business records of Sherman Originator III LLC.
3. On **January 21, 2020** (the "Sale Date"), Sherman Originator III LLC sold a pool of charged-off accounts, and receivables due and owing associated with those accounts (hereinafter referred to collectively as "Purchased Accounts"), described on the computer file which specifically references each account in the data file, named **20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append data** (the "Computer File") by a Purchase and Sale Agreement and a Bill of Sale and Assignment to Midland Credit Management, Inc. (the "Buyer") (such transaction being the "Sale"). The originating creditor, charge-off creditor, and prior servicer of the Purchased Accounts was Credit One Bank, N.A.
4. Pursuant to the Sale, Sherman Originator III LLC sold, transferred, assigned, conveyed, granted, bargained, set over and delivered to the Buyer and its successors and assigns as of the Sale Date: (i) good and marketable title to the Purchased Accounts; (ii) the right to any future payments made arising out of the Purchased Accounts, (iii) any unpaid balance related to the Purchased Accounts, and (iv) all account documents in Sherman Originator III LLC's possession. All of the assets transferred to Buyer were transferred free and clear of any encumbrance, equity, lien, pledge, charge, claim or security interest of any kind. I am not aware of any errors or defects related to the Purchased Accounts, the Computer File, the account documents, or Sherman Originator III LLC's ownership of and title to the Purchased Accounts.
5. In connection with the Sale of the Purchased Accounts, various records in different formats were transferred to or otherwise made available to the Buyer (the "Business Records"). As part of my regular job duties, I have knowledge of and access to Business Records relating to the Purchased Accounts. These Business Records were kept by Sherman Originator III LLC in the regular course of business. It was within Sherman Originator III LLC's regular course of business for a representative with personal knowledge of the act, event, condition, or opinion recorded to make memorandums or records or to transmit information thereof to be included in memorandums or records. Any such memorandums or records were created at or near the time of the act or event recorded or reasonably soon thereafter. To the extent that the Business Records include records that were prepared by a third party, an agent, an affiliate, or a subsidiary, those records were incorporated into the records of Sherman Originator III LLC becoming part of its own Business Records.

[signatures included on following page]

The above statements are true to the best of my knowledge.
Signed this 30 th day of January, 2020


JON MAZZOLI

Affirmed to and subscribed before me this 30 th day of January, 2020


_____, Notary



CERTIFICATE OF CONFORMITY

I, Meghan Emmerich, an attorney-at-law admitted to practice in the State of South Carolina and fully acquainted with the laws of the State of South Carolina pertaining to the acknowledgement or proof of deeds of real property to be recorded therein, do hereby certify that I am duly qualified to make this certificate of conformity and that the acknowledgement or proof upon the affidavits of merit were taken by Savannah Ramsey, notary public in the State of South Carolina, in the manner prescribed by the laws of the State of South Carolina and conforms to the laws thereof in all respects.

IN WITNESS WHEREOF, I have hereunto set my signature, on January 30, 2020.


Meghan Emmerich
Attorney at Law, State of South Carolina

Field	Field Data
Account Number	██████████6140
Seller Account ID	689283984
First Name	Antonia
Last Name	Rodas
SSN	XXX-XX-4137
Date of Birth	██████████
Address 1	250 E Avenue P1
City	Palmdale
State	CA
Zip	93550
Home Phone	6612365040
Open Date	10/14/2013
Last Purchase Date	03/30/2019
Last Purchase Amount	\$60.00
Last Payment Date	11/11/2019
Last Payment Amount	\$117.00
Charge Off Date	12/29/2019
Charge off Balance	\$2,917.12
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Credits	\$0.00
Post Charge off Payments and Credits	\$0.00
Alternate Account #1	██████████6140

Account information provided by Sherman Originator III LLC pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 01/21/2020 in connection with the sale of accounts from Sherman Originator III LLC to Midland Credit Management, Inc.

20200116_ChgOff_Final_Sale_Excel_CreditOne_Encore_Jan20_633534_689238-1_append data
633534

CREDIT ONE BANK CREDIT CARD STATEMENT
Account Number 6140
October 28, 2019 to November 27, 2019

SUMMARY OF ACCOUNT ACTIVITY	
Previous Balance	\$2,843.10
Payments	- \$117.00
Other Credits	- \$0.00
Purchases	+ \$0.00
Cash Advances	+ \$0.00
Fees Charged	+ \$43.25
Interest Charged	+ \$52.06
New Balance	\$2,821.41
Credit Limit	\$2,300.00
Available Credit	\$0.00
Statement Closing Date	11/27/19
Days in Billing Cycle	31

QUESTIONS?

Call Customer Service or Report
a Lost or Stolen Credit Card 1-877-825-3242
Outside the U.S. Call 1-702-405-2042
Please send billing inquiries and correspondence to:
P.O. Box 98873, Las Vegas, NV 89193-8873

PAYMENT INFORMATION	
New Balance	\$2,821.41
Past Due Amount	\$812.00
Amount Due This Period	\$177.00
Minimum Payment Due	\$989.00
Payment Due Date	12/23/19
Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee up to \$35.	
Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance.	
For example:	
If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...
Only the minimum payment	6 years
\$113.00	3 years
	\$4,074.00 (Savings= \$16.00)
If you would like a location for credit counseling services, call 1-866-515-5720.	

TRANSACTIONS					
Reference Number	Trans Date	Post Date	Description of Transaction or Credit		Amount
74071939X00XTMJHX	11/11	11/11	PAYMENT - THANK YOU LAS VEGAS NV		-117.00
Fees					
F572700AB000CYLAC	11/27	11/27	ANNUAL FEE 12/19 THROUGH 12/19		8.25
	11/27	11/27	LATE FEE		35.00
			TOTAL FEES FOR THIS PERIOD		43.25
Interest Charged					
	11/27	11/27	Interest Charge on Purchases		52.06
	11/27	11/27	Interest Charge on Cash Advances		0.00
			TOTAL INTEREST FOR THIS PERIOD		52.06
2019 Totals Year-to-Date					
Total fees charged in 2019				\$450.65	
Total interest charged in 2019				\$557.30	

Your account is currently closed.

INTEREST CHARGE CALCULATION			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	25.65%(v)	\$2,434.81	\$52.06
Cash Advances	25.65%(v)	\$0.00	\$0.00
(v) = Variable Rate			

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Please return this portion with your payment, and write your account number on your check, made payable to CREDIT ONE BANK.



For address, telephone and email changes,
please complete the reverse side.
Or, update your contact information online
at www.CreditOneBank.com.

PAY YOUR BILL ONLINE at CreditOneBank.com

Account Number: 6140
New Balance: \$2,821.41
Minimum Payment Due: \$989.00
Payment Due Date: 12/23/19

AMOUNT ENCLOSED:

\$.



CREDIT ONE BANK
PO BOX 60500
CITY OF INDUSTRY CA 91716-0500

ANTONIA RODAS
250 E AVENUE P1
PALMDALE CA 93550-3223



CREDIT ONE BANK CREDIT CARD STATEMENT
 Account Number [REDACTED] 6140
 November 28, 2019 to December 27, 2019

SUMMARY OF ACCOUNT ACTIVITY		
Previous Balance		\$2,821.41
Payments	-	\$0.00
Other Credits	-	\$0.00
Purchases	+	\$0.00
Cash Advances	+	\$0.00
Fees Charged	+	\$43.25
Interest Charged	+	\$52.46
New Balance		\$2,917.12
Credit Limit		\$2,300.00
Available Credit		\$0.00
Statement Closing Date		12/27/19
Days in Billing Cycle		30

QUESTIONS?

Call Customer Service or Report
 a Lost or Stolen Credit Card 1-877-825-3242
 Outside the U.S. Call 1-702-405-2042

Please send billing inquiries and correspondence to:
 P.O. Box 98873, Las Vegas, NV 89193-8873

PAYMENT INFORMATION	
New Balance	\$2,917.12
Past Due Amount	\$954.00
Amount Due This Period	\$1,998.12
Minimum Payment Due	\$2,917.12
Payment Due Date	01/23/20
Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee up to \$35.	
Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance.	
For example:	
If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...
Only the minimum payment	1 months
	\$2,917.00
If you would like a location for credit counseling services, call 1-866-515-5720.	

TRANSACTIONS					
Reference Number	Trans Date	Post Date	Description of Transaction or Credit	Amount	
Fees					
F572700B9000CYLAC	12/27	12/27	ANNUAL FEE 01/20 THROUGH 01/20	8.25	
	12/27	12/27	LATE FEE	35.00	
			TOTAL FEES FOR THIS PERIOD	43.25	
Interest Charged					
	12/27	12/27	Interest Charge on Purchases	52.46	
	12/27	12/27	Interest Charge on Cash Advances	0.00	
			TOTAL INTEREST FOR THIS PERIOD	52.46	
2019 Totals Year-to-Date					
Total fees charged in 2019				\$493.90	
Total interest charged in 2019				\$609.76	

Your account is currently closed.

INTEREST CHARGE CALCULATION			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	25.40%(v)	\$2,478.06	\$52.46
Cash Advances	25.40%(v)	\$0.00	\$0.00
(v) = Variable Rate			

5385 JBH 001 7 27 191227 0 CXPAGE 1 of 1 2 0 5727 9620 M115 01GR5385

Please return this portion with your payment, and write your account number on your check, made payable to CREDIT ONE BANK.



For address, telephone and email changes, please complete the reverse side.
 Or, update your contact information online at www.CreditOneBank.com.

PAY YOUR BILL ONLINE at CreditOneBank.com

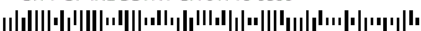
Account Number: [REDACTED] 6140
 New Balance: \$2,917.12
 Minimum Payment Due: \$2,917.12
 Payment Due Date: 01/23/20

AMOUNT ENCLOSED: \$.



CREDIT ONE BANK
 PO BOX 60500
 CITY OF INDUSTRY CA 91716-0500

ANTONIA RODAS
 250 E AVENUE P1
 PALMDALE CA 93550-3223



0000000 0291712 0291712 [REDACTED] 6140 0